

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.,
COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT.

v.

SAMSUNG ELECTRONICS COMPANY, LTD., SAMSUNG
SDSAP GLOBAL SCL ASIA PACIFIC PTE LTD., AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED
THIRD PARTY RESPONDENTS,

**OPPOSITION TO RESPONDENT’S MOTION FOR EXTENSION OF TIME TO
RESPOND TO COMPLAINANT’S MOTION TO COMPEL**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its undersigned counsel, pursuant to 46 C.F.R. § 502.71, respectfully submits its Opposition to Respondent’s Motion for Extension of Time to Respond to Complainant’s Motion to Compel (the “Motion”) filed by Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”).

INTRODUCTION

The additional week plus COSCO seeks to respond to SEA’s Motion to Compel is not the result of any unforeseen circumstance and is not needed to respond to the motion. In a Sunday email communication to SEA counsel, counsel for COSCO represented that they already received guidance from Chinese counsel but want to delay the opposition for a declaration so that they do not “repeat the guidance they have already given.” But because COSCO’s US counsel already has Chinese law guidance that they purported to act on, COSCO’s US counsel can, and should, represent that information to the FMC. To the extent that COSCO has not previously shared the guidance (indeed, the instant emergency motion to extend is the first time COSCO has even shared the name of the Chinese law firm), that has been COSCO’s own choice to not timely provide information on Chinese law issues that have been apparent since the outset of this proceeding filed on March 22, 2024.

COSCO has long acknowledged this reality. As early as November 25, 2025—nearly three months ago—COSCO represented to the Court that it was “working with separate Chinese counsel to review data in China in compliance with China’s laws.” Dkt. 88. Despite COSCO’s repeated representations that it has been working with Chinese counsel to address China-law constraints, it has never shared any initial advice with SEA to substantiate this claim, let alone with the Presiding Officer. And COSCO now claims it cannot respond to SEA’s Motion to Compel without additional

time to consult that same counsel. That assertion is unpersuasive and reflects a lack of diligence, not an unforeseen impediment.

SEA could not agree when first approached for an extension on Saturday of the holiday weekend, four days after COSCO received SEA's Motion. The reason matches that first addressed in SEA's Motion to Compel; Respondent has not been forthright with the Presiding Officer, let alone Complainant, concerning its failure to produce documents by a date certain. This problem is only getting worse when considering its proposal to produce heavily redacted emails.

Moreover, COSCO cannot plausibly claim lack of notice. As COSCO's own cited communications in the joint status report reflect, SEA advised COSCO prior to February 11 that SEA intended to file a motion to compel. Dkt. 94 at 13. COSCO thus had additional advance notice and opportunity to obtain the purported Chinese-law support it now claims it needs. Its failure to do so further confirms that an extension is unwarranted.

COSCO's request seeks to convert its own delay into "good cause." The Presiding Officer should deny the enlargement and hold COSCO to the existing deadline.

ARGUMENT

I. COSCO's Request Is Not Justified and Highlights the Basis for SEA's Motion to Compel.

COSCO seeks a nine-day extension—from February 18 to February 27, 2026—to respond to SEA's Motion to Compel, claiming that it cannot obtain a declaration from Chinese counsel due to the Chinese New Year holiday. This representation is inconsistent (to be generous) given COSCO's prior representations and the timeline of this case. On November 25, 2025, COSCO represented to this Court in the parties' Joint Motion to Extend (Dkt. 88) that:

[T]here have been technical difficulties with some collected data from years past, including archived data, which delayed processing and review of some documents. COSCO is also working with separate Chinese counsel to review data in China in compliance with China's laws, which limit the export of certain data, creating

significant and time-consuming hurdles for cross-border data sharing and production of documents.

If COSCO still lacks “sufficient guidance” from Chinese counsel at this late stage—after nearly two years of litigation and months of representing to the Presiding Officer that it was actively addressing these very issues—that failure underscores, rather than mitigates, the basis for SEA’s Motion to Compel. COSCO cannot transform its own lack of diligence into a good-faith justification to further delay the Court’s consideration of its discovery obligations. Indeed, given COSCO’s repeated assurances that it has been working with Chinese counsel, one would reasonably presume that COSCO has already been in communication with that counsel and has received explanations regarding why its China productions are being conducted in the manner COSCO claims is required by Chinese law.

Nor is COSCO’s assertion that it “has not refused to produce any documents from China” accurate. Although COSCO points to a production on February 13, 2026, and anticipates another by February 18, 2026, Exhibit 1 to this opposition demonstrates that COSCO’s purported China productions are riddled with sweeping redactions that remove all identifiable information. Such blanket redactions render the documents effectively unusable and amount, in substance, to a withholding of responsive information. A production that strips documents of their identifying and contextual details is not meaningful compliance, and COSCO should not be afforded additional time to continue this practice under the guise of consultation or good faith.

II. COSCO Had Ample Time to Act and Can Respond Without a Declaration.

SEA filed its Motion to Compel early in the morning on February 11, 2026, affording COSCO ample opportunity to act immediately. The Chinese New Year holiday did not begin until February 15, 2026, according to the declaration submitted by COSCO’s counsel on China law with its extension motion (though other public sources state the Lunar New Year begins on February

17¹), leaving several intervening days during which COSCO could have conferred with Chinese counsel and obtained—or at a minimum initiated—the necessary guidance.

It is curious that COSCO could seek and obtain a declaration from its counsel in China seeking an extension, but it could not ask that same counsel to submit a declaration supporting even the most rudimentary considerations of Chinese law that formed the basis of its document production challenges during the last several months (at least since the November 25, 2025, joint motion where COSCO addresses its working with counsel to address generic Chinese law limitations). COSCO’s attempt to characterize the holiday as an unavoidable impediment is therefore unavailing.

In any event, COSCO’s claimed inability to secure a declaration from Chinese counsel does not prevent it from responding to SEA’s Motion to Compel. COSCO is fully capable of filing a substantive response explaining its position, detailing the purported Chinese-law constraints, and making representations based on the guidance it claims to have already received. Indeed, COSCO asserts that it has been relying on advice from Chinese counsel for months, and that purported guidance has formed the basis for COSCO’s repeated representations to both the Presiding Officer and SEA. A formal declaration is not a prerequisite to responding to the Motion, nor does COSCO identify any authority suggesting otherwise.

CONCLUSION

For the foregoing reasons, SEA respectfully requests that the Presiding Officer deny COSCO’s Motion for Enlargement of Time.

¹ <https://www.bbc.co.uk/newsround/articles/cpw02x0req5o>.

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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